

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2023CUPP012195: JAMES WALD, et al. vs TRAVIS EDWARD MARTIN, et al.
09/11/2026 in Department 42
Demurrer and Motion to Strike**

Motion: Defendant Travis Edward Martin's Demurrer and Motion to Strike (*Opposed*)

Tentative Ruling:

The Court finds good cause to lift any stay applicable to this motion under Code of Civil Procedure section 391 for the purposes of deciding the instant motion. There is no harm or prejudice to any party or the court by deciding this motion now.

Defendant Travis Edward Martin's Demurrer is **OVERRULED** and the Motion to Strike Portions of Plaintiffs' First Amended Complaint is **DENIED**.

Request for Judicial Notice

The Request for Judicial Notice is **GRANTED** in part and **DENIED** in part. The Court takes judicial notice of the existence, filing, and legal effect of the FAC and court records in Exhibits A-E and M, and of California statutory law in Exhibit L. The Court may notice that testimony and argument reflected in the official criminal transcripts occurred and may consider the content of writings that themselves form part of Plaintiffs' pleaded claims. The Court does not take judicial notice of the truth of disputed testimonial assertions or the prosecutor's closing argument.

As to Exhibits F-K, matters actually admitted in responses to requests for admission are given the conclusive effect required by Code of Civil Procedure section 2033.410, subdivision (a), but the Court does not treat qualified admissions, denials, or interrogatory responses as conclusive admissions of propositions they do not actually admit.

Demurrer

The demurrer to the Fourth Cause of Action (IIED by James and Natalie), Sixth Cause of Action (Defamation/Libel by James and Natalie), Seventh Cause of Action (Intentional Interference with Prospective Economic Relations), and Eighth Cause of Action (Intentional Interference with Contractual Relations) are overruled. Judicially noticeable facts do not establish that these claims are not adequately pled and/or are not viable claims.

Sixth Cause of Action (Defamation/Libel)

It is true that whether a challenged communication is reasonably susceptible to an actionable assertion of fact can be decided as a matter of law. (*Baker v. Los Angeles Herald Examiner* (1986) 42 Cal.3d 254, 260-261.) *Franklin v. Dynamic Details* also recognizes that an accusation framed as opinion may be nonactionable where the underlying factual basis is fully disclosed and

the reader is free to evaluate it. ((2004) 116 Cal.App.4th 375, 387-390.) But *Franklin* does not establish that every accusation using the words “admitted in court” is protected regardless of context or what was disclosed.

Here the FAC quotes statements asserting not only that Natalie gave certain testimony, but that she “admitted in court to sex trafficking her 4-year old daughter,” that the Walds “sold their daughter to a sex offender,” and that they were “admitted criminals.” (FAC ¶¶ 66, 69, 71.) These statements are reasonably susceptible to a provably false factual meaning. The judicially noticed materials do not conclusively establish that the Walds admitted trafficking or compensation for abuse or admitted they were criminals.

Travis also challenges the factual validity of allegations relating to how his responsibility for the defamatory content. But Paragraph 70 alleges more than an unexplained suspicion: it alleges that, during a prison investigation, evidence was found on a state-issued tablet confirming Travis initiated and coordinated with Does to post the defamatory content. Paragraphs 71-72 further allege that Travis and Does sent or caused to be sent an August 2, 2023 email and that Travis initiated the knowingly false statements. These are sufficient ultimate facts for pleading purposes, even if discovery later fails to substantiate them.

Fourth Cause of Action (IIED)

IIED requires extreme and outrageous conduct, intent to cause or reckless disregard of the probability of causing emotional distress, severe emotional distress, and causation. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.) The Court may determine in the first instance whether alleged conduct could reasonably be regarded as sufficiently outrageous. The allegations here are sufficient. The FAC alleges that the person convicted of sexually abusing P.W. sent her parents a graphic post-sentencing letter explicitly describing the abuse and accusing them of knowingly allowing it, and then coordinated a campaign to disseminate accusations of sex trafficking to their personal, church, employment, and business communities. (FAC ¶¶ 20-21, 47-51.) If the alleged accusations are false, the statements attributable to Travis far exceed ordinary insults or criticism. At the pleading stage, the defamation theory adequately supports the IIED claim even if other alleged theories are deficient. Finally, the reference to Code of Civil Procedure section 340.1 in the Fourth Cause heading is inapt because this is an adult-parent IIED claim, but surplusage or an incorrect statutory citation in a heading do not warrant the sustaining of a demurrer.

Seventh Cause of Action (Prospective economic relations)

Intentional interference with prospective economic advantage requires: (1) an existing economic relationship with a third party containing the probability of future economic benefit; (2) defendant’s knowledge; (3) intentional independently wrongful acts designed to disrupt it; (4) actual disruption; and (5) resulting economic harm. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1153-1154, 1164-1165; *Roy Allan Slurry Seal, Inc. v. American Asphalt South, Inc.* (2017) 2 Cal.5th 505, 512, 516-518.)

The FAC sufficiently identifies an existing relationship with CBF rather than an unidentified hope of future customers. It alleges repeated prior music-event work with Giammanco/CBF and that a favorable ongoing relationship increased the likelihood of future projects. (FAC ¶¶ 79-80.) The fact that each event required a separate contract and that future work was not guaranteed does not necessarily negate “probability”; the tort does not require certainty.

The allegations of disruption are sparse but sufficient at the pleading stage. Paragraphs 82-85 allege that Martin and Does directed the challenged accusations to CBF and other business associates with the intent to disrupt the existing relationship, and paragraph 86 alleges that, as a proximate result, Plaintiffs suffered economic harm. (FAC ¶¶ 82-86.) Read together and liberally construed, these allegations permit the inference that the relationship was in fact impaired. The FAC need not identify the particular lost event, quantify the lost revenue, or plead the evidence by which disruption will be proved. Whether Plaintiffs can establish an actual disruption and resulting loss is a merits issue.

Travis’ separate argument that James and Natalie lack standing is also unavailing. The FAC expressly alleges that James, Natalie, and Elite had the CBF relationship, while also describing that relationship as conducted “through” Elite. (FAC ¶¶ 79-80.) *PacLink Communications International, Inc. v. Superior Court* (2001) 90 Cal.App.4th 958, 963-965, precludes members from recovering individually for an injury that belongs solely to an LLC. But the present pleading does not conclusively establish on its face that every alleged expectancy and injury belonged exclusively to Elite. The precise nature of the parties’ business relationship, and whether James or Natalie can prove a distinct individual expectancy or injury, may be addressed on a developed factual record.

The independent-wrongfulness element is not a separate basis to sustain the demurrer. The FAC alleges defamatory publications as the wrongful acts. Because the defamation claim is adequately pleaded at this stage, it can supply an independently wrongful act for pleading purposes.

Eighth Cause of Action (Contractual relations)

Intentional interference with contract requires a valid contract, defendant’s knowledge, intentional acts designed to induce breach or disruption, actual breach or disruption, and resulting damage. (*Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1126.) The FAC alleges that James and Natalie, “through” Elite, were in a contractual relationship with Giammanco/CBF to service Boots and Brews, that Travis knew of the relationship, intentionally targeted it, and “in fact disrupted” it. (FAC ¶¶ 90-95.) At the pleading stage, the contract need not be pleaded with the evidentiary detail Travis demands (date, consideration, all terms, etc.). The allegations are sufficient as to Elite.

Natalie also alleges an employment relationship with Ventura Missionary School, messages sent to induce the school to terminate her, actual disruption, and resulting harm. (FAC ¶¶ 96-101.) The FAC does not allege that she was terminated, but the tort protects against disruption as well as breach. An at-will relationship can support an interference theory if the defendant uses

independently wrongful means. The adequately pleaded defamation theory supplies that alleged wrongfulness at this stage. The demurrer is overruled as to Natalie.

The same conclusion applies to James. The FAC alleges that “JAMES and NATALIE, through their company, ELITE,” were in the CBF contractual relationship and further alleges Martin’s knowledge, intended disruption, actual disruption, and resulting damages. (FAC ¶¶ 90-95.) The phrase “through their company” may ultimately show that Elite alone was the contracting party, but the contract is not attached and the FAC does not conclusively establish that proposition on its face. At the pleading stage, the allegation of a contractual relationship involving James is sufficient. If the evidence later establishes that James had no contractual right or legally cognizable injury, that issue may be resolved on summary judgment or summary adjudication.

Demurrers for Uncertainty

The special demurrers for uncertainty are **OVERRULED**. Although several allegations may ultimately require proof or clarification, the challenged claims are sufficiently intelligible to permit a response.

Motion to Strike

The Motion to Strike is **DENIED**. The Court specifically declines to strike the reference to Penal Code section 288.7(b) in FAC paragraph 27. Paragraph 27 alleges that acts described in the pleading constitute crimes under sections 288(a) and 288.7(b); it does not allege that Travis was convicted under section 288.7(b). The FAC separately alleges oral-genital sexual conduct with P.W. while she was under ten years old. (FAC ¶¶ 17, 23, 27.) The absence of a section 288.7(b) conviction therefore does not establish that paragraph 27 is false on the face of the pleading.

The Court also declines to strike the punitive-damages allegations as to the surviving intentional tort theories. Read as a whole, the FAC alleges that Travis intentionally coordinated a post-conviction campaign to send knowingly false accusations of child sex trafficking to the Walds’ friends, churches, business associates, and Natalie’s employer for the purpose of harming them financially and emotionally. (FAC ¶¶ 20-21, 47, 51, 63-75, 92-101.) These factual allegations are sufficient at the pleading stage to support an inference of malice under Civil Code section 3294.

The Court likewise declines to strike emotional-distress damages categorically from the interference claims. Such damages are not routinely available, but California recognizes that they may be recoverable where serious emotional distress is objectively reasonably expected from the circumstances of the interference. (*Di Loreto v. Shumake* (1995) 38 Cal.App.4th 35, 38-40.) The alleged dissemination of accusations that parents sex-trafficked their child to their personal, business, church, and employment communities is materially different from the ordinary commercial fee dispute in *Di Loreto*. Elite, as an entity, cannot itself suffer emotional distress; the allegations are construed accordingly.

Opposing party to give notice.